KASHRUT COURSE AT TIFERET EYAL

Glatt, Halak or Just Kosher? Meat, Milk and Cheese

Kashrut Course, Part 6

Series: Kashrut, a six-part course at Tiferet Eyal, Hendon **Shiur:** Part 6 of the six-part Kashrut course, given by Dayan Daniel Kada at Tiferet Eyal, Tuesday 9 July 2019 (the penultimate session)

These notes are based on an automatic transcript of the recording.

Introduction

"Welcome back to our penultimate shiur. We've got lots to cover today." The plan was five topics: **meat, milk, cheese and butter, produce from Israel, and eating out in a vegan restaurant**. The following week would be a practical **bug-checking** session, with **Rabbi Tobin** joining to give a live demonstration. In the event, the class ran over time and the vegan restaurant topic was not reached.

Part 1: Meat

Terefah: "torn"

We know which animals are kosher and that they need shechita. Where does the word ***taref*** come from? From the Torah (Shemot 22:30):

וּבָשָׂר בַּשָּׂדֶה טְרֵפָה לֹא תֹאכֵלוּ. Flesh torn in the field you shall not eat.

Terefah means **torn**: an animal mauled by another animal. Shechita must be done on a living animal; once it is dead (a *nevelah*), shechita is useless.

The Hachamim explain, also from the Torah, that **an animal that will not live another 12 months** counts as *terefah*. The same principle appears elsewhere: if false witnesses testify that a man broke Shabbat and deserves death, and are caught lying, they are normally executed themselves. But if their victim was a person who would anyway die within 12 months, they are not, because "you tried to kill someone who is already dead."

Checking the lungs

The Hachamim identified many defects (the Rabbi spoke of **72**) which mean an animal will probably die within the year. But we do **not** need to check for them after shechita. We rely on ***chazakah***, presumption: the animal stood before us looking healthy. Only if you see something, such as a broken leg, must you check.

There is **one exception**, because it is relatively common: **the lungs**. A **puncture** in the lung makes the animal *terefah*, so the lungs must be **physically checked after every shechita**.

A puncture is often covered by a ***sirchah***, an adhesion or scab. Can the inspector **gently peel it off**, feel that the lung underneath is smooth, then **inflate the lung** and see whether air escapes? If it holds, there was no puncture.

Which part of the lung?

First, a disagreement between the **Shulchan Aruch** and the **Rama** about **where** on the lung a *sirchah* invalidates the animal. Surprisingly, here Sephardim are more lenient: the Shulchan Aruch's area is **smaller** than the Rama's. In practice, however, **all kashrut authorities follow the Rama's wider area**. "Even the most Sephardi kashrut authority" will not supply meat with an adhesion in the area that the Shulchan Aruch permits but the Rama forbids.

May one peel off the adhesion?

The Shulchan Aruch (Yoreh De'ah 39:10) writes very strongly against it. The Rabbi read it out "because people aren't aware of the severity of this issue": wherever adhesions of the lung are forbidden, there is no difference between small and thick, and one may not rely on those who peel it away by hand and find the lung intact. **Anyone who relies on this is feeding people non-kosher food**, since the puncture may simply have healed over.

The Rama writes that there are those who permit rubbing and peeling adhesions, and that **the custom is to be lenient**.

Three levels of meat

"People don't realise. They think there are only two levels, Ashkenazim and Sephardim. There are actually three."

Level	Meaning
Kosher (no adjective)	Possibly from an animal whose **adhesions were peeled off** and the lung inflated, following the Rama's leniency
Glatt (Yiddish, "smooth")	No real adhesions. The Rama allows up to **one or two *ririn***, tiny mucus-like protrusions that can be peeled away. Better, but still relies on this
Halak Beit Yosef (Hebrew *chalak*, "smooth")	**The entire lung completely smooth**, with nothing at all protruding, following the Shulchan Aruch, who rejects peeling even "the smallest thing"

Glatt and *halak* both mean "smooth," but they refer to different standards. **Halak Beit Yosef** is the higher one, and "we Sephardim have a duty to follow this. I'm not sparing my words here. This is a duty to follow. There's no reason why we can't."

The Rabbi mentioned two London butchers he uses that sell Halak Beit Yosef meat, **Menachem's** and **Kosher Deli**, adding that there are surely others. Ashkenazim who do not buy it there are not opposed to Halak Beit Yosef; some simply want a different hechsher. In America there are Chassidic hechsherim that are Halak Beit Yosef.

Tip: if you cannot get Halak Beit Yosef, **lamb** is the best choice. Young animals are the least likely to be *terefah*, unlike an older cow or ox.

"Glatt chicken"

Glatt only applies to **meat**, to the lungs of cattle. "Glatt chicken" is a misnomer. "Glatt bean sprouts" or "glatt lettuce" is borrowing the word to mean a higher level of supervision. "What they really should be advertising is *halak* lettuce, because that's the highest level." Chickens do not need to be glatt.

Invited to an Ashkenazi home or a function

You are invited to an Ashkenazi family, or to a Sephardi family that does not keep this, or to a wedding or function (even under the strictest Ashkenazi hechsher). The meat is not Halak Beit Yosef. May you eat it?

Chacham Ovadia Yosef has a teshuvah on this. The question was first raised about 400 years ago by the **Devar Shmuel** (Rabbi Shmuel Abuhav). The answer is that it is permitted because of a ***sfek sfeika***, a double doubt:

1. Ordinary kosher meat does not necessarily come from an animal that had adhesions peeled off. Many of the animals will have been completely smooth. You do not know which this is.
2. Even if it was, perhaps the halachah follows the **Rama**, who permits it.

So, while not in the first instance, **when invited to someone's home or a wedding, you may eat the meat**. Some will not, but there is what to rely on, as long as it is not regular. A participant asked about **restaurants**. The Rabbi distinguished being invited from actively going out to buy non-Halak Beit Yosef meat, and was not sure the leniency extends that far. Again, it depends how often one does it.

Three places where eating together overrides the stringency

The Rabbi noted that in the course they had now met three places where Chacham Ovadia allows one community to eat at another's table, even though the food is forbidden to it, so long as it is not a regular practice:

1. **Bishul Akum**: Sephardim may eat by Ashkenazim, even though Sephardim normally require a Jew to put the pot on.
2. **Kitniyot on Pesach**: Ashkenazim may eat by Sephardim, even from pots in which rice was cooked.
3. **Meat**: Sephardim may eat non-Halak Beit Yosef meat by Ashkenazim.

Where do all these different rulings come from? Not from the Shulchan Aruch or Rama inventing them, but from different interpretations of the Gemara: the Shulchan Aruch follows the Rif and the Rambam, the Rama follows the European Rishonim such as Tosafot.

Part 2: Milk

Kosher animal, kosher milk

Whatever comes from a kosher animal is kosher; whatever comes from a non-kosher animal is not. **Cow, goat and sheep** milk is kosher. **Camel, pig, horse** and even **whale** milk is not.

The Rabbi had looked into pig's milk: pigs do produce milk, rich in fat (around 8.5% compared with about 3.9% for cows) and nutritious. But it is rarely found, because sows have about fourteen teats and do not like being milked. Camel milk is somewhat more common.

Chalav Akum and Chalav Yisrael

Since milk from different animals cannot be told apart once milked, the Hachamim, already in the Gemara, decreed that a Jew must **see the milking**, from the milking until the bottling.

Term	Meaning
Chalav Akum	Milked by a non-Jew with no Jew present: forbidden **rabbinically**, like Bishul Akum
Chalav Stam	Unsupervised milk from a place with reliable government regulation (Rav Moshe Feinstein): see below
Chalav Yisrael	Milked by a Jew, or by a non-Jew with a Jew present from milking to bottling

A farm with no non-kosher animals

Several centuries ago there was a debate: what if a farm or area has **no non-kosher animals at all**?

- The **Pri Chadash** (Jerusalem) held that such milk is permitted.
- The **Chatam Sofer** and most poskim disagreed: the decree is comprehensive, and a Jew must be present regardless.

Rav Moshe Feinstein: *anan sahadi*

On that basis, supermarket milk from Tesco or Sainsbury's would be forbidden. Along came **Rav Moshe Feinstein**: today, with **government legislation**, a company caught mixing in non-kosher milk would face huge fines and would go bust.

Why does that make it permitted? Not simply because the company fears for itself, but because of the halachic principle of ***anan sahadi***, "we are witnesses": something so clear it is as if we testified to it. The Rabbi's example from marriage: one way to effect kiddushin is through marital relations. The witnesses do not see the act itself; they see the couple **secluded** in a locked room for long enough, and that suffices, because it is as if we witnessed the act. So too here: with strict regulation and heavy penalties, **it is as if a Jew witnessed the milking**. This is ***chalav stam***.

Some say Rav Moshe did not really mean it. "He definitely did mean it." The Rabbi read Rav Moshe's words: there is a **clear reason to be lenient**, and indeed it is permitted; but a ***ba'al nefesh***, someone especially spiritually sensitive, should be stringent.

The Chazon Ish (Rav Avraham Yeshayahu Karelitz of Bnei Brak) held the same, from a different angle. He liked the Pri Chadash's reasoning about a place without non-kosher animals, and added that if non-kosher milk is **more expensive**, there is no reason to add it. He too said a *ba'al nefesh* should be stringent.

Rabbi Yosef Mashash of Morocco wrote that in Morocco everyone was lenient.

Chacham Ovadia: stringent where it is easy

Chacham Ovadia Yosef and his son are stringent. If Chalav Yisrael is readily available, one should get it. If it is difficult, one may rely on Rav Moshe.

- Living in **Golders Green or Hendon**, where kosher milk is easy to get, there is no reason to be lenient.
- **"Out of the area"** does not mean Bristol. It means somewhere without a kosher shop open all hours: if you wake up and there is no milk, Chacham Ovadia would be lenient.

Powdered milk and chocolate

Chacham Ovadia rules that **powdered milk is fine**, for two reasons:

1. It can apparently only be made from kosher animals' milk (pig's milk, a participant noted, does not curdle).
2. The decree was on **milk itself**. Powdered milk may have changed its identity, and the decree was not extended to it.

So **chocolates** made with milk powder are permitted according to him, as well as according to Rav Moshe. Many disagree, which is why many are stringent.

Don't call it non-kosher

"Personally, I'll tell you, I'm particular to have Chalav Yisrael." But once in a hotel, with no Chalav Yisrael available, he used the hotel's milk (in clean glass or plastic, with cold milk; not from a mug that might have been used for who knows what).

The Rabbi stressed the importance of understanding the difference between a **chumrah** and the basic halachah. He told a true story of a schoolchild who was told that **eating a Mars bar is like eating non-kosher food**. When he later saw people eating Mars bars, he went and ate actual non-kosher food. A Mars bar, according to Chacham Ovadia, contains powdered milk, not real milk. "We don't make up our own *gedarim*."

His practical guidance:

- **Milk itself**: if you live in the area, **buy Chalav Yisrael**.
- **Chocolates** such as KitKat, Twix and Mars: those who refrain should continue, "and that's great." But those who do not have plenty to rely on.
- **Yoghurt** has the same status as milk.
- Within the **EU**, and in **America**, one may rely on chalav stam because of strict regulation. Outside these areas (he wondered about places like Mexico, Argentina or China), one would have to check.
- **Video surveillance** instead of a person present: a big discussion in the last 20 to 30 years. **Rav Elyashiv** and **Rav Wosner** both permitted it; different agencies have different standards.

"I'm not coming up in the shiur thinking those who keep Chalav Yisrael can go and have [chalav stam]. That's not my intent, absolutely not." The aim was to explain how everything works and why some are stringent and some are lenient.

(A participant asked about milk from a cow that is itself *terefah*, for example from infection. Milk from an animal that will die within 12 months is indeed not kosher. But as with meat, we rely on *chazakah* and need not check unless we know otherwise.)

Part 3: Cheese and Butter

Why non-Jewish cheese is forbidden

The **Mishnah** says cheese of non-Jews is forbidden, and the Gemara gives **seven reasons**. Most no longer apply, for example non-kosher milk in the holes of the cheese, the surface smeared with lard, or non-kosher vinegar.

The main reason, **Shmuel's**, codified in the Shulchan Aruch: cheese is made by adding an **enzyme, rennet**, taken from the stomach lining of an animal, which **may be non-kosher**.

A drop that is never nullified

The rennet is a tiny amount, far less than one in sixty. Normally that would be nullified. But rennet is a ***davar hama'amid***, it is what **forms** the cheese, and such a thing is never nullified, not in sixty and not in a thousand.

The Rabbi compared it to a **whole insect**: a *beriyah*, a complete creature, is never nullified. If a whole insect falls into a huge pot of food and is lost, the whole pot must be thrown out, even if it is a million times bigger. If you can see it, simply take it out. And you may not chop it up deliberately to nullify it. A Jew may not cause nullification on purpose; a non-Jew producing food for himself may.

Microbial rennet does not help

In many places in Europe, cheese is still made with animal rennet, so it definitely needs a hechsher. In the USA, and apparently in England, much cheese is made with **microbial rennet** or even **thistle**. Surely that solves the problem?

No. This was already discussed in the times of the Gemara, and the **Rambam and Shulchan Aruch** rule that **even if you know for certain** the cheese was set with herbs or another non-animal enzyme, it is **still forbidden**. The Hachamim made a comprehensive decree on all non-Jewish cheese.

What makes cheese "Jewish"?

- **Rama: supervision** by a Jew is enough.
- **Shulchan Aruch** (and this is how the kashrut authorities operate): supervision is **not** enough. Unlike milk, a Jew, the mashgiach, must **personally put the rennet in**. He must be part of the making of the cheese.

Soft and cream cheese

Rav Moshe Feinstein held that the decree applies only to **hard cheese**. **Soft cheese and cream cheese** can set from their own acidity without rennet, so they were never included, and many institutions follow this. **Provided the ingredients are kosher**, such cheese does not need a hechsher. The OU on some **Philadelphia** cream cheese means only that the ingredients are kosher; no Jew is involved in making it. At the time, kashrut authorities in England were looking into certifying cream cheeses on the same basis.

"Soft" means properly soft. A cheese like **Cheddar** is still **hard cheese** for this purpose.

Butter

The **Shulchan Aruch** discusses whether the Hachamim extended the cheese decree to **butter**, and rules that **where the custom is to be lenient, one may be lenient**. The custom is that they did not extend it.

But take care: non-kosher **fats**, even **lard**, are sometimes added to butter. It must be **pure butter**, with nothing added. So in a hotel, butter with pure ingredients, for example the small individual portions, is acceptable.

Part 4: Produce from Israel

Produce grown in Israel requires **terumot and ma'asrot**. If you own a farm or vineyard in Israel, or buy without a hechsher there, you must separate them; a good hechsher takes care of it.

But do you need to take terumot and ma'asrot from an Israeli **avocado bought at Tesco in England**?

- **Everyone agrees** that produce which left Israel **before** it became obligated needs nothing. If you picked an apple and took it straight to England, it is exempt.
- Produce becomes obligated at the stage of ***miru'ach***, when the harvested heap is piled and smoothed over. Commercial produce has almost certainly reached that stage during production.
- The question is whether an obligation that already took effect **falls away once the produce leaves the Land**. **Chacham Ovadia** brings many proofs and many poskim who rule that it does. The Rabbi read his words: even though they were processed and smoothed over in Israel, **they are exempt** from terumot and ma'asrot.

Shemittah is different. The holiness of seventh-year produce is intrinsic and does not leave with it. In a Shemittah year one must be careful not to buy Shemittah produce.

The Rabbi began to suggest that, faced with **peaches from Spain and peaches from Israel**, one might buy the Spanish ones to avoid the dispute, but then reconsidered: perhaps one wants to **support Israeli produce**. "You have to make a decision with that."

Ashkenazim do take terumot and ma'asrot from Israeli produce abroad; the Federation, for example, has a whole system for it.

Summary

- **Terefah** means "torn"; an animal that will die within 12 months is *terefah*. We rely on *chazakah* for most defects but must **check the lungs** after every shechita.
- **Three levels of meat**: plain kosher (adhesions peeled), **glatt** (up to two tiny *ririn*), and **Halak Beit Yosef** (completely smooth). **Sephardim should buy Halak Beit Yosef**; lamb is the safest alternative.
- When **invited** to an Ashkenazi home or a wedding, a Sephardi may eat ordinary kosher meat because of a **double doubt** (Chacham Ovadia, following the Devar Shmuel), but not as a regular practice.
- **Milk:** Chalav Akum is rabbinically forbidden. Rav Moshe Feinstein permits **chalav stam** where regulation is strict (*anan sahadi*), but a *ba'al nefesh* is stringent. Chacham Ovadia: buy **Chalav Yisrael** where it is easily available; **powdered milk** and milk chocolate are permitted.
- **Cheese:** forbidden because of rennet, a *davar hama'amid*, even when made with non-animal rennet. For Sephardim, a Jew must **add the rennet** himself. **Soft and cream cheese** are exempt (Rav Moshe Feinstein) if the ingredients are kosher.
- **Butter** from non-Jews is permitted if it is **pure**, with no added fats.
- **Israeli produce** bought abroad is exempt from terumot and ma'asrot (Chacham Ovadia), but **Shemittah** produce is not.

Next week, the final session: a practical **bug-checking** demonstration with Rabbi Tobin.

Watch or listen to this shiur: youtu.be/BTfTaLQ1Qn4 · More shiurim: rabbikada.com